

Virendra Kumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 22 January 2019 · Writ - C No. 1977 of 2019 · WRIT - C No. - 1977 of 2019 · **Writ disposed; petitioner relegated to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005 to decide objections to the disputed bill; recovery citation dated 22.11.2018 kept in abeyance pending that decision.**

HEADNOTE

A consumer who disputes an electricity bill and seeks quashing of the recovery citation is relegated to the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The writ court does not examine the bill on merits; the Executive Engineer is to hear the consumer and decide the objections in accordance with law, and recovery remains in abeyance pending that decision.

FACTUAL SUMMARY

The petitioner, Virendra Kumar, approached the Allahabad High Court seeking quashing of a recovery citation dated 22 November 2018 by which Rs. 1,74,005 was sought to be recovered. He disputed the underlying electricity bill. The distribution licensee, Purvanchal Vidyut Vitran Nigam Ltd., appeared through counsel and contended that a disputed bill must be taken to the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The State of Uttar Pradesh and other official respondents were represented by the Standing Counsel.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Where the consumer disputes the electricity bill and challenges the recovery citation, the High Court will not quash the citation on merits. The statutory remedy is to approach the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. If the consumer appears with fresh objections, the Executive Engineer must hear the consumer and decide the representation in accordance with law; recovery under the citation remains in abeyance pending that decision.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND OF THE RECOVERY CITATION DATED 22.11.2018 FOR RS. 1,74,005

Left to the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., to decide on the petitioner's objections under clause 6.5 in accordance with law. ¶ 1